

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
SEPTEMBER 02, 2026
8:30 a.m.

3. SANDRA GAIL WIRTH V. ROBERT JON WIRTH

SFL20160123

This matter is before the court for hearing of the Request for Order (RFO) filed by the Petitioner on August 11, 2026,⁶ to compel Respondent's further discovery responses. Also on August 11, 2026, the court granted Petitioner's request for order to shorten time, ordering Petitioner to serve the RFO on or before August 14, 2026, and ordering Respondent to file and serve a Responsive Declaration on or before August 26, 2026.

Proof of service filed August 12, 2026, shows the RFO and supporting documents were electronically served upon Respondent that same day.

On August 26, 2026, Respondent filed a timely Responsive Declaration, memorandum of points and authorities, and responses to Petitioner's Separate Statements (a separate response related to interrogatories, request for production, and request for admission), copies of which were electronically served upon Petitioner that same day per the proofs of service attached to each filing.

On August 27, 2026, Petitioner filed a supplemental declaration, a copy of which was electronically served upon Respondent that same day per the proof of service, also filed August 27, 2026.

Respondent claims that the further information Petitioner seeks through discovery pertains to the sale of his business and such information is subject to a proposed Stipulated Protective Order. The court, however, is unable to locate a copy of said protective order or documentation that a proposed order was provided to Petitioner. Before addressing the substance of Petitioner's RFO, the court will need clarification on the issue of the protective order.

Lastly, the court notes that, on August 12, 2026, Respondent filed a Request for Status Trial Setting Conference. The court set a Trial Setting Conference for September 23, 2026. Although the matter is not presently before the court, the court intends to ask Respondent for clarification at the August 12 hearing. It is unclear to the court what trial Respondent wishes to set, as the evidentiary hearing on his RFO to modify spousal support is already on calendar. The parties are ordered to meet and confer in advance of the hearing to reduce the range and number of disputed issues.

TENTATIVE RULING #3: APPEARANCES ARE REQUIRED AT 8:30 A.M., WEDNESDAY, SEPTEMBER 02, 2026, IN DEPARTMENT 12. THE PARTIES ARE ORDERED TO MEET AND CONFER IN ADVANCE OF THE HEARING TO REDUCE THE RANGE AND NUMBER OF DISPUTED ISSUES.

⁶ On August 10, 2026, Petitioner filed a Notice of Motion and Motion to Compel Further Discovery Responses on pleading paper. The August 10, 2026, filing includes a request for monetary sanctions; however, the court notes that Petitioner filed no Income and Expense Declaration (I&E) in connection with her request. The August 11, 2026, RFO was filed on the required Judicial Council form FL-300.